Minimum Contractor Background Checks Policy

Effective Date:
June 10, 2026

Category:
Security

Scheduled Review:
June 2027

1. Authority

Executive Order 2016-06, Enterprise Information Technology Governance

2. Document Control

This document replaces, in its entirety, the *Minimum Contractor Background Checks Policy*, dated January 6, 2025.

3. Purpose

This Information Technology Policy (ITP) establishes the enterprise-wide policy of minimum background check requirements for contractors.

4. Scope

This policy applies to all offices, departments, boards, commissions, and councils under the Governor's jurisdiction and any other entity connecting to the Commonwealth Network (hereinafter referred to as "agencies").

5. Policy

For definitions found within this document, refer to the *IT Policy Glossary*.

Service Organizations, as a condition preceding award of a contract or purchase order, shall conduct a pre-employment background check on every contractor including those within its Subservice Organizations, who will:

- Perform services onsite at Commonwealth owned or leased facilities or
- Have access to Commonwealth infrastructure, including facilities (owned or leased) or information systems via onsite or remote access or
- Have access to Commonwealth data.

For contractors who continue to meet any of the conditions listed above for more than one year, the Service Organization shall conduct such background checks on an annual basis.

Pre-employment background checks of prospective contractors shall include, at a minimum, verification of identity, employment history, and criminal record review. The criminal record review shall include checks that screen against state and local systems containing information on criminal arrests, convictions, warrants, and incarcerations.

The Service Organization, or its Subservice Organizations, shall have a criminal background check conducted in the state where the contractor currently resides. For Contracted Resources who reside within the Commonwealth of Pennsylvania, requests for criminal record checks shall be made to the Pennsylvania State Police.

For contractors who have or who will have access to the Pennsylvania Commonwealth Law Enforcement Assistance Network , Criminal Justice Information, Federal Tax Information, or any Criminal History Record Information data, by either onsite or remote computer access, a pre-employment background check shall also include a fingerprint database search. The type of fingerprint search required shall be determined by the applicable governing policy or regulation (e.g., FBI CJIS Security Policy, IRS Publication 1075) and shall be performed in compliance with those requirements. Recertification shall be maintained in accordance with the applicable policy or regulation.

For more information on background checks, refer to:

- IRS Publication 1075
- CJIS Security Policy
- Request for Criminal Record Check
- Out of State Background Check

Service Organizations and Subservice Organizations with contractors providing services from a location outside of the United States, as permitted by an approved exception to the *Information Security Policy,* shall provide background checks performed by an internationally recognized service per the terms of the applicable contract or purchase order. The Commonwealth retains the right to reject background checks that are deemed insufficient or incomplete.

Service Organizations shall provide copies of pre-employment background checks to the Contract Manager or appropriate agency personnel.

Subject to the terms of the applicable contract and all applicable laws and regulations, agencies may determine whether the results of a background check preclude a contractor from being granted access to agency facilities or data.

The Service Organization, or their Subservice Organization(s), shall be responsible for the payment of all fees associated with background checks and fingerprinting of their respective contractors and subcontracted employees.

In addition to the requirements above, the following language, or substantially similar, shall be included in all Commonwealth procurement vehicles and documents, including, but not limited to: Requests for Proposal, Invitation for Bids, Invitations to Qualify, Requests for Quote, sole-source contracts, renewals, amendments for services to be performed by Service Organization's personnel or subcontractors onsite at Commonwealth owned or leased facilities, via onsite or remote computer access to Commonwealth infrastructure, or who have access to Commonwealth data:

The Service Organization shall, at its expense, arrange for a background check for each of its employees, as well as for the employees of its subcontractors, who will have access to Commonwealth infrastructure, to include facilities (owned or leased) and information systems, either through onsite or remote access or who will have access to Commonwealth data.

Background checks shall be conducted via the Request for Criminal Record Check for in- state contractors or via a criminal background check through the appropriate State Agency for the employees residing out of state. The background check shall be completed before the employee is granted access and annually thereafter.

In addition, if any additional background check requirements are required by law (e.g., IRS Publication 1075 background checks), those background check requirements must also be included in the governing terms and conditions.

Before the Commonwealth grants a contractor access to Commonwealth owned or leased facilities or Commonwealth data and annually thereafter, the Service Organization shall provide copies of background checks to the appropriate contract manager or office designated by the agency that the required background check(s). If, at any time, it is discovered that a contractor has a criminal record that includes a felony or misdemeanor involving terrorist threats, violence, use of a lethal weapon, or breach of trust/fiduciary responsibility; or which raises concerns about building, system, or personal security, or is otherwise job-related, the Service Organization shall not:

- *assign that employee to any Commonwealth facilities,*
- *provide that employee any access privileges and remove any access privileges already given to the employee, and*
- *permit that employee remote access to Commonwealth facilities or systems or access to any Commonwealth data, unless the agency consents, in writing, prior to the access being provided.*

The agency may withhold its consent at its sole discretion. Failure of the Service Organization to comply with the terms of this paragraph may result in default of the Service Organization under its contract with the Commonwealth.

6. Contact

Questions or comments may be directed via email to OA, IT Policy.

7. Exception from Policy

In the event an agency chooses to seek an exception from this policy, a request for a policy exception shall be submitted via the IT policy exception process. Refer to *IT Policy Governance Policy* for guidance.

8. Revision History

This chart contains a history of this publication's revisions. Redline documents outline the revisions and are available to Commonwealth users only during the drafting process.

Version	Date	Purpose of Revision
Original	01/06/2025	Base Document
Revision	06/10/2026	Updated link for out-of-state background checks Added requirement for service organizations to provide copies of background checks Clarified that whether background checks prevent a contractor from being granted access is at the agency's discretion. Added details around types and recertification for fingerprint database searches. Added that agencies may reject international background checks deemed insufficient. Other misc. clarifications